

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG GB DLJUG

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF CAROL LATIMORE, M.A., LPC, LICENSE NO. 1052

Respondent,

IT IS HEREBY STIPULATED and agreed by and between the Board of Licensed Professional Counselor Examiners ("Board") and Carol Latimore, M.A., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice as a licensed professional counselor in Colorado on October 15, 1994. Respondent was issued license number 1052.

3. Respondent was practicing psychotherapy in the state of Colorado as provided in C.R.S. §12-43-201(9). Respondent practiced psychotherapy in the case involved in this proceeding.

4. On or about September 2, 1997 the Board received a complaint against respondent alleging practice below generally accepted standards of practice.

5. Following an investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for disciplinary action regarding respondent's license to practice professional counseling and practice of psychotherapy in the state of Colorado.

6. Respondent understands that she has the right to a hearing with respect to the complaint filed against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute;

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Respondent further understands and agrees that, by voluntarily
and knowingly entering into this stipulation and order, she
waives her right to a hearing; relieves the Board of its burden
of proving a violation of the Colorado Mental Health Statute;

gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

7. Respondent agrees that she freely and voluntarily enters into this agreement including practice monitoring with evaluation and professional education.

8. The Board hereby orders that respondent's practice of professional counseling and psychotherapy shall be on probation for a period of eighteen months commencing with the execution of this stipulation and order or written approval of her practice monitor, whichever occurs later.

9. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that she does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling and psychotherapy shall be monitored and evaluated by a Board-approved mental health provider ("practice monitor"), who both monitors respondent's practice of professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and order.

c. The practice monitor's first responsibility will be to conduct a practice evaluation. The practice evaluation will examine all aspects of respondent's practice of professional counseling and psychotherapy and her qualifications, ability and competence to practice professional counseling and psychotherapy to determine if respondent can practice professional counseling and psychotherapy in accordance with generally accepted standards of practice, with skill and safety for her clients and if respondent has the necessary qualifications, ability, and competence to practice professional counseling and psychotherapy.

d. Should the Board determine from the practice monitor's report that respondent can not practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients, or does not have the appropriate qualifications,

gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that she has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

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d. Should the Board determine from the practice monitor's report that respondent can not practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients, or does not have the appropriate qualifications,

ability, or competence for her practice of professional counseling and psychotherapy, respondent shall immediately cease any portion of her practice of professional counseling and psychotherapy that the Board determines, based on the practice evaluation, she is not qualified, competent, or safe to conduct. Based on the Board's findings and the practice monitor's report, the Board will determine necessary actions that respondent must take and conditions she must meet so that she can practice professional counseling and psychotherapy with skill and safety for her clients and in accordance with generally accepted standards of practice in any area the Board finds she is not qualified, competent or safe to practice professional counseling and psychotherapy. Once respondent satisfies the Board that she has taken the appropriate actions and met the conditions so that she is qualified, competent and safe to fully practice professional counseling and psychotherapy she may resume the full practice of professional counseling and psychotherapy.

e. The practice monitoring shall be conducted as follows:

(i) Respondent's practice monitor shall monitor all of respondent's cases. The practice monitoring shall consist of individual face-to-face contact between respondent and her practice monitor that occurs at least once a week for one hour or such longer time as the practice monitor deems necessary. During practice monitoring meetings, respondent and her practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first twelve reports, unless

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otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name address and telephone number of the supervisor. This written notification may be provided in a mandatory disclosure form. The practice monitoring reports shall acknowledge that such written notification has been provided to each client.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent and the when he/she sends the report to the Board.

(vi) Respondent must have a practice monitor approved by the Board within three months after the execution of this stipulation and order, or else respondent must cease the practice of professional counseling and psychotherapy until a practice monitor is approved. Respondent agrees to a summary suspension of her professional counseling license if she does not have an approved practice monitor within three months after execution of this stipulation and order.

(vii) Either respondent or her practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of professional counseling and psychotherapy until she obtains another Board-approved

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practice monitor. The new practice monitor's responsibilities shall be in accordance with this stipulation and order.

(vii) During the period of probation respondent shall not engage in the practice of professional counseling and psychotherapy without an approved practice monitor in place.

f. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, as defined in C.R.S. §12-43-201(9), to clients unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 9e.

g. Respondent shall complete a minimum of forty (40) hours of Board-approved professional continuing education as a term of probation. The education shall be in classes designed to educate mental health professionals in handling client/therapist relationship and transference issues, appropriate client termination, and other legal /ethical issues related to the practice of professional counseling and psychotherapy. Completion of an approved jurisprudence workshop is required as part of this education requirement.

h. Respondent must take reasonable steps to assure that her practice monitor provides required reports to the Board.

i. Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for practice monitoring, continuing education or any other action required in fulfilling the requirements of this order.

j. Respondent must provide written notification to every professional counseling and psychotherapy client who she provides any professional counseling and psychotherapy services to while this order is in effect, informing the client of the name, address, and telephone number of her supervisor. Such notice may be provided in a mandatory disclosure statement.

k. During the pendency of this order respondent agrees that she will provide permission to and allow her practice monitor to provide medical or psychological information or records to the Board in the event the practice monitor determines that respondent is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order respondent explicitly waives her right to

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maintain confidentiality of medical and psychological records and information provided to her practice monitor if the practice monitor determines that she is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care.

10. All time periods and obligations regarding practice monitoring and continuing education stated in this order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a Board-approved practice monitor. They are tolled and suspended at all other times.

11. If respondent discontinues the practice of professional counseling and psychotherapy in Colorado, she shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date she ceased practicing and her new address if she has moved.

12. In the event respondent resumes her practice of professional counseling and psychotherapy in Colorado she shall provide written notification to the Board prior to resumption of her practice of professional counseling and psychotherapy in Colorado. Such notification shall include her address and the date on which she intends to resume practice.

13. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(5). The terms "psychotherapy", "practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" shall have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. §12-43-201(9).

14. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

15. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

16. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect

maintain confidentiality of medical and psychological records and information provided to her practice monitor if the practice monitor determines that she is not able to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice or has any condition which renders her unable to treat clients with skill and safety or which may endanger the health or safety of persons under her care.

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only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

17. This stipulation and order shall take effect on acceptance and signature by the Board.

18. This stipulation and order is a public record.

Carol Latimore, M.A., LPC

CAROL LATIMORE, M.A., LPC
Respondent

DATED: 12-15-98

ACCEPTED, SIGNED, AND ORDERED this 6th day of January,
1998.

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STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS

Sue Henry

SUE HENRY
CHAIR

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Sue Henry

SUE HENRY
CHAIR

APPROVED AS TO FORM

FOR THE RESPONDENT:



LAURENCE B. JAMES
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AG File No. RLJC8271

APPROVED AS TO FORM

FOR THE RESPONDENT:



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